

Reasoned Review: the independence of Review Decision 69983

Process, reasoning, authorities and document production

Workers' Compensation Regulator review 69983 · insurer reference S23LW142013

Appeal **WC/2024/227** — *Shepherd v Workers' Compensation Regulator*, Queensland Industrial Relations Commission

Prepared by the appellant, C. L. Shepherd · 8 August 2026

STATUS OF THIS DOCUMENT

1. This is a working analysis prepared by the appellant for his own record. It is not a filing, not a pleading, not evidence, and not a submission in WC/2024/227 unless and until it is deliberately made one.
2. **It makes no allegation of impropriety, dishonesty or misconduct against any person or any firm.** Where document metadata is reproduced, it is reproduced as observed data. Where an inference is available, the document says so and states the competing inference. Where a matter is not established, the document says that it is not established.
3. Every conclusion in Part M is expressed as a question, because on the material available a question is the highest form the point can properly take.

Part A — Purpose, scope and method

4. This review examines a single document: the *Reasons for decision* dated 24 October 2024, recording a review decision of 22 October 2024, signed by Ms Victoria Squires, Senior Reviewing Officer, Review Unit, Workers' Compensation Regulatory Services, confirming WorkCover Queensland's rejection of the appellant's application for compensation.
5. It examines four things: the statutory framework within which the decision was made; the process that was actually followed; the reasoning the decision employs and the authorities it applies; and what the electronic file itself records about how the document was produced.
6. The organising question is whether the process that produced this decision was independent in the sense the scheme requires, and if so, in what sense.
7. **Method.** All statutory references are taken from the authorised consolidation of the *Workers' Compensation and Rehabilitation Act 2003* (Qld) current as at 1 January 2025. All quotations from the decision are taken from the text layer of the served PDF. All metadata is taken from the served file itself using exiftool 12.76, pikepdf 10.10.0, qpdf and pdffonts, and is reproducible by any party holding the same file. Comparative metadata is taken from documents served by the Regulator in this appeal.
8. **What this review does not do.** It does not seek to establish who decided the review. It does not seek to establish who paid for any work. It does not assert that any person failed to bring an independent mind to bear. Those matters cannot be determined from the material examined, and the review says so.

Part B — The statutory framework

The two bodies

9. WorkCover Queensland and the Workers' Compensation Regulator are different entities with different functions. On a review under Chapter 13 Part 2 they occupy opposite positions: WorkCover is the decision-maker whose decision is examined; the Regulator is the body that examines it.

Body	Role in this matter
WorkCover Queensland	The insurer. Rejected the application for compensation on 13 September 2024.
Workers' Compensation Regulator (Workers' Compensation Regulatory Services, Office of Industrial Relations)	The reviewer. Confirmed the rejection by review decision of 22 October 2024, reasons dated 24 October 2024.
Queensland Industrial Relations Commission	The appeal body. Hears the appeal and may substitute its own decision.

The office of the Regulator

10. Section 326 establishes the office and defines its character:

326 Establishment of office and appointment of Regulator

- (1) The office of the Workers' Compensation Regulator is established.
- (2) The Governor in Council may appoint a **public service officer** as the Workers' Compensation Regulator (*the Regulator*).
- (3) The Regulator is appointed under the *Public Sector Act 2022* and may hold that appointment **in conjunction with another public service office**.
- (4) **The Regulator must act independently when making a decision under this Act** but otherwise is **subject to direction** in the person's capacity as a public service officer or an officer of the department.

11. Three things follow, and they are the foundation of everything in Part L. First, **the Regulator is not an independent statutory authority**. It is a public service office, held by a public servant, who may concurrently hold another public service office. Second, **s 326(4) is the only statutory duty of independence in the Act**, and it is engaged here because a review decision under s 545 is a decision under the Act. Third, **that duty is expressly confined**: it attaches to the making of the decision, and everything else is expressly within the ordinary directable sphere.
12. Section 329 governs delegation. The Regulator may delegate a function or power only to an appropriately qualified public service employee, an authorised person, or a person prescribed under a regulation. A private law firm is not a public service employee, and no relevant prescribing regulation has been identified. The decision is signed by a Senior Reviewing Officer of the Review Unit, who is a public service employee. **The delegation is therefore proper on its face.**

The review

13. Section 539 states the object of the review part:

The object of this part is to provide a **non-adversarial** system for **prompt resolution** of disputes.

14. **The word "independent" does not appear in s 539, and does not appear anywhere in Chapter 13.** This is a matter of some significance and it is addressed at paragraphs 30 to 33.

15. Sections 543 and 544 allocate the parties' roles, and they allocate them unequally.

Provision	The applicant worker	The insurer
s 543 Right of appearance	"The applicant may appear before the Regulator in person or be represented by another person at the applicant's expense ... The applicant may also make representations to the Regulator by telephone or another form of communication."	No corresponding provision. No right of appearance. No right to be represented.
s 544 Information	—	An obligation only. The Regulator "may, by written notice, require the decision-maker to give the Regulator... all relevant information and documents", within 5 business days. "The decision-maker must comply with the notice." "The decision-maker must pay the cost. "

16. The asymmetry is deliberate and it is structural. **Parliament conferred on the worker a right of appearance and representation, and conferred on the insurer no participatory role whatsoever** — only a compellable duty to produce documents. The insurer is not a party to the review in any meaningful sense; it is the subject of it.
17. Section 545(1) requires the Regulator, **within 25 business days after receiving the application**, to review the decision and decide to confirm, vary, set aside and substitute, or set aside and return the decision.
18. Section 545(4) limits extension of that period. The Regulator may extend it only with the applicant's consent (to allow a s 543 appearance or to obtain s 544 information) or on the applicant's own written request. **The Regulator has no unilateral power to extend the 25 business days.**

The appeal

19. Section 549(1): "A claimant, worker or employer **aggrieved by the decision** (the appellant) may appeal to an appeal body **against the decision of the Regulator** or the insurer (the respondent)."
20. Section 550 prescribes procedure: 20 business days from receipt of notice of the review decision; commenced by filing a written notice of appeal.
21. Section 558(1) confers the powers, and it is the source of the hearing's *de novo* character. The appeal body may: (a) confirm the decision; (b) vary it; **(c) set aside the decision and substitute another decision**; or (d) set aside and return the matter with directions.
22. Section 558(2): where the appeal body varies or substitutes, **"the decision is taken for this Act... to be the decision of the insurer"**. A substituted decision is therefore acceptance of the claim.
23. Section 558(3) puts the costs of the hearing in the appeal body's discretion.

THE STRUCTURAL CONSEQUENCE

24. Parliament conferred on the Commission the same substitution power it conferred on the Regulator. The scheme therefore assumes that reviews can be wrong and builds the remedy in. **The statutory answer to a defective review is not to litigate the review. It is the appeal.**

25. It follows that nothing in this document is capable of being a ground of appeal. On a hearing conducted afresh the Commission is not reviewing the review decision for error; it is replacing it. This is stated at the outset so that the purpose of the analysis is not misunderstood.

Part C — What "independent" means in this scheme

26. The decision describes its own process, at page 2:

The review is an **independent administrative process** or a "review on the papers". This means that as the decision-maker, I have considered the material on WorkCover's claim file (S23LW142013) and any new information provided by you or another party during the review process.

27. The published description of the function by the Office of Industrial Relations is to similar effect: an "independent, prompt, non-adversarial review of certain decisions made by insurers".
28. The sense in which the process is independent is therefore **independence of the insurer**. That is the entire architectural purpose of Chapter 13 Part 2: that a body other than WorkCover examines WorkCover's decision. It is not, and does not claim to be, independence of government, of the department, or of the Minister — s 326(3) and s 326(4) place the office squarely inside the public service and expressly subject to direction except when deciding.
29. Two textual matters must be recorded, both of which qualify the strength of any independence argument.
30. **First, Chapter 13 never uses the word.** The object of the review part, s 539, is "a non-adversarial system for prompt resolution of disputes". It says nothing about independence. The phrase "independent administrative process" appears in the decision letter and in published material, not in the statute.
31. **Second, Parliament used the word elsewhere in the same Act, and used it deliberately.** Section 490, the object of Chapter 11, provides for "an **independent** and non-adversarial system of medical review and assessment". Parliament therefore had the concept available, expressed it in Chapter 11, and did not express it in Chapter 13.
32. The consequence is that the independence of a Chapter 13 review rests on two things and not on a third. It rests on **s 326(4)** — the duty to act independently when making a decision — and on the **structural** separation of the reviewing body from the insurer. It does not rest on any object clause, because there is none.
33. Section 326(4) must be read whole. The duty is to act independently *when making a decision*, "**but otherwise is subject to direction**". Parliament drew the line at the decision itself. How the office is resourced, how a document is produced, and what assistance is obtained in producing it are, on the face of the provision, outside the protected sphere.
34. It follows that **s 326(4) is not a duty to prepare reasons in-house**. It is a duty to decide independently. Obtaining assistance — research, advice, or a draft — is orthodox across government and does not of itself offend the provision, provided the decision-maker applies her own mind and adopts the reasons as her own.
35. A further textual point tells against implying any restriction on who may prepare a review. Where Parliament wished to prescribe who must carry out a review, it did so expressly. Section 538(2), governing the insurer's internal review, provides that "the review **must be made by a person who is in a more senior position** than the person who proposes to make the decision". **No equivalent provision governs the Regulator's review under Part 2.** On ordinary principles of construction that silence is deliberate.

36. Two general law doctrines remain available independently of the statute.
37. **Acting under dictation.** A decision-maker must exercise independent judgment and must not simply adopt the will of another; *Ansett Transport Industries (Operations) Pty Ltd v Commonwealth* (1977) 139 CLR 54; *R v Anderson*; *Ex parte Ipec-Air Pty Ltd* (1965) 113 CLR 177. The vice is not receiving assistance; the vice is not deciding.
38. **Apprehended bias.** The test is whether "a fair-minded lay observer might reasonably apprehend that the [decision-maker] might not bring an impartial mind to the resolution of the question": *Ebner v Official Trustee in Bankruptcy* (2000) 205 CLR 337. It applies to administrative decision-makers: *Minister for Immigration and Multicultural Affairs v Jia Legeng* (2001) 205 CLR 507. It requires the identification of what might lead to a departure from impartiality and the articulation of a logical connection between that matter and the feared departure. **It does not require actual partiality, and it does not require proof that anyone did anything wrong.** Where the concern is the participation of an interested person in preparing material for the decision-maker, the governing authority is *Hot Holdings Pty Ltd v Creasy* [2002] HCA 51; (2002) 210 CLR 438, in which the High Court held the decision unaffected on the facts but did not settle when such a person may be said to have played a significant role.

Part D — Chronology

Date (AEST)	Event	Source
18 June 2024	Date of injury	Decision p 1
1 July 2024	Application for compensation lodged; first work capacity certificate of Dr Hawes	Decision p 1, evidence list
12 & 16 July 2024	Ms Reese's two meeting attempts (see Part H, defect 2)	Decision p 12
15 August 2024	Employer's first response	Evidence list
Fri 6 September 2024, 13:26:34	Employer's second response converted to PDF	File metadata
Sat 7 September 2024, 08:27	Second response forwarded to the appellant; further information invited "by 10 September 2024"	Correspondence pack 10
Sun 8 September 2024	Third work capacity certificate of Dr Hawes — the last dated medical document in the review record	Evidence list
Fri 13 September 2024, 16:59	WorkCover rejects the application	Pack 10
Mon 16 September 2024	Application for review received — one business day later	Decision p 1
Wed 18 September 2024	WorkCover's communications report "as at" this date — the latest-dated item in the entire review record	Evidence list
Mon 7 October 2024	King's Birthday, Queensland public holiday — not a business day	—
9 October 2024	Date recorded in the document-management profile of the file eventually served (Part J)	File metadata
Tue 22 October 2024	Review decision made	Decision p 1
Thu 24 October 2024, 10:16:52–10:17:01	Word document converted to PDF	File metadata
Thu 24 October 2024	Reasons issued , 28 pages, copied to Metro South Hospital and Health Service and to WorkCover Queensland	Decision pp 1, 28

Part E — The process actually followed

The statutory clock, computed

39. The application for review was received on Monday 16 September 2024. Section 545(1) allows 25 business days. Counting from the following day and excluding weekends and the Queensland King's Birthday public holiday on Monday 7 October 2024:

Days 1–4	5–9	10	11–14		15–18	19–23	24–25
17–20 Sep	23–27 Sep	30 Sep	1–4 Oct	7 Oct holiday	8–11 Oct	14–18 Oct	21–22 Oct

40. **The 25 business days expired on Tuesday 22 October 2024. The review decision is dated Tuesday 22 October 2024.** The decision was made on the last day available.
41. By s 545(4) the reviewing officer had no unilateral power to extend that period. No extension appears on the face of the decision, and none appears to have been sought.
42. This is recorded as a neutral fact and it cuts in the Regulator's favour on one point and against it on another. It is not a breach: the decision was made within time. But it establishes that the decision was produced under a hard external constraint, and that is relevant to how the reasoning should be understood.

The record before the reviewing officer

43. The decision lists the material considered. The latest-dated item is WorkCover's communications report "as at 18 September 2024". The medical material ends with the work capacity certificate of 8 September 2024.
44. A full-text search of all 28 pages returns no event later than 18 September 2024. The word "October" appears only in relation to events of October 2022 and in the decision's own dates.
45. The consequence is that the reviewing officer decided the matter on a record that had closed **five weeks** before the decision was made. In particular, and material to the appellant's circumstances, the review record contained nothing about the cessation of his employment, which took effect on 8 October 2024 and was notified to him at 16:10 on 9 October 2024 — that is, on business day 16 of the 25.
46. No criticism of the reviewing officer arises from paragraph 45. The appellant notified WorkCover of the cessation on 10 October 2024; there is nothing to show the Regulator was told. The fact is recorded because it bears on the weight the review decision can carry, not on anyone's conduct.

The right of appearance

47. Section 543 confers on the applicant a right to appear and to be represented. The decision does not record whether that right was drawn to the appellant's attention, whether an appearance was offered, or whether any representation beyond written submission was invited. The decision records that the review is "a review on the papers".
48. This is noted as an open question for Part M and not as a criticism. The statute permits the process to be conducted on the papers.

The employer's second response and the window to answer it

49. The employer's further response was created as a PDF at 13:26:34 on Friday 6 September 2024 and was forwarded to the appellant at 08:27 on **Saturday 7 September 2024**, with the statement that further factual information should be provided "by 10 September 2024, otherwise I will be proceeding to making a decision".

50. The window to answer the employer's further material therefore comprised **two business days**, Monday 9 and Tuesday 10 September. WorkCover's decision issued on Friday 13 September.
51. That is a matter concerning the insurer's process rather than the Regulator's, and it is recorded here because the review decision proceeded on the record so produced.
52. One further observation of fact. Every email from the WorkCover claims representative in the chain of 4 July to 10 October 2024 issued from her individual mailbox address. **The rejection of 13 September 2024 alone issued from a different address form** at the same domain. This is consistent with dispatch from a claims or document system rather than an individual mailbox. Nothing is inferred from it; it is recorded because it is the single structural difference between the decision email and every other email in the chain.

Part F — What the decision found

53. The decision identified four causative factors and made the following findings.

Matter	Finding
Factor 1 — non-adherence to rules by management	Not substantiated
Factor 2 — management action in response to the complaint	Substantiated in part; reasonable management action taken in a reasonable way
Factor 3 — withholding of pay	Substantiated in part; reasonable management action taken in a reasonable way
Factor 4 — non-adherence to and manipulation of the roster guidelines	Substantiated in part; UNREASONABLE management action
Personal injury of a psychological nature	Established
Employment a significant contributing factor (s 32(1))	Established
Pre-existing condition	"There was no pre-existing factor or condition"
Outcome	WorkCover's rejection CONFIRMED

54. Four findings in that table are of particular significance and they are all favourable to the appellant.
55. First, the reviewing officer found: "Having regard to the medical evidence, **I am satisfied your employment was a significant contributing factor to the psychological injury.**"
56. Second, she recorded that WorkCover's communications report showed that on 2 September 2024 Dr Hawes told WorkCover that "**work events were the sole cause**" of the psychological injury.
57. Third, she recorded that the mechanism was consistent with the treating doctor's clinical findings and that "**there was no pre-existing factor or condition**", maintained across all later certificates.
58. Fourth, on factor 4 she found that the rostering of two shifts "**amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement**".
59. The rejection therefore did not rest on any finding that the appellant was uninjured, that his employment did not cause the injury, that he had a pre-existing condition, or that all of the management action was reasonable. Each of those propositions was decided in his favour or was not made out against him.

Part G — How the findings were reversed

60. The reversal occurs at a single step. Having found factor 4 to be unreasonable management action, and having found employment to be a significant contributing factor, the decision aggregates:

I note that since **two out of the three** causative factors amounted to reasonable management action taken in a reasonable way, this means your psychological injury **mainly** arose out of such management action.

61. The exclusion in s 32(5)(a) is then applied and the application is rejected.
62. Two features of that step should be noted at once, and they are developed in Part H. It is **arithmetical** — it counts factors rather than evaluating them. And the word "**mainly**" imports a dominant-cause criterion, which is not the statutory test.

63. The structure of the decision is therefore that **everything the appellant needed was found in his favour, and the rejection was produced by one paragraph of aggregation.** That is the shape of the document and it is the reason the appellant relies on the decision rather than attacking it.

Part H — Defects in the reasoning

Defect 1 — the counting fallacy

64. The aggregation passage quoted at paragraph 60 counts factors. The Industrial Court has rejected that approach. In *Davis v Blackwood* (commonly cited as *Adams*) [2015] ICQ 1 at [23], adopting *Q-COMP v Hochen*, there is no dominant cause test, and reasonable management action is not neutralised, nor unreasonable management action defeated, by being outnumbered.
65. In *Mahaffey v Workers' Compensation Regulator* [2016] ICQ 10 at [51] and [54]–[57], a single unreasonable stressor bearing a sufficient causal connection to the injury is capable of removing the case from the s 32(5)(a) exclusion.
66. The word "mainly" has no counterpart in s 32(5)(a). The subsection asks whether the disorder arose *out of* reasonable management action, not whether it mainly did.

Defect 2 — post-injury conduct used to characterise pre-injury action

67. Section 32(5)(a) excludes a disorder "**arising out of, or in the course of**" reasonable management action taken in a reasonable way. The action must therefore be the action out of which the injury arose.
68. The injury is dated 18 June 2024. On factor 2, the decision records at page 12:

In an **undated email**, Ms Reese scheduled a meeting with you at 10:00am on **12 July 2024** to discuss the outcome of your complaint.

In an email dated 12 July 2024, Ms Reese stated she **rescheduled the meeting to 16 July 2024 since you were away on that day**.
69. The operative conclusion at page 18 is:

Likewise, I find Ms Reese contacted you twice in an attempt to schedule a meeting with you to discuss your concerns and allegations, and **without your participation in this process, there was no other actions available for Ms Reese to take. Therefore, I am satisfied this factor amounted to reasonable management action taken in a reasonable way.**
70. The two meeting attempts post-date the injury by **24 and 28 days respectively**. They also post-date the lodgement of the compensation application and the first work capacity certificate, both of 1 July 2024.
71. Conduct occurring after an injury is not capable of being conduct out of which that injury arose. It could bear on an aggravation under s 32(3)(b), but no aggravation was in issue on the review. **The word "Therefore" in the passage quoted at paragraph 69 is carried, in substantial part, by conduct legally incapable of supporting it.**
72. If the post-injury material is removed, the entire remaining basis for a finding of reasonable management action on factor 2 is: the complaint was acknowledged two days after lodgement; particulars were requested once, on 20 May 2024; and the matter was closed on 27 May 2024 — **11 to 14 days after lodgement, with no investigation**, a fact the decision records the employer as having conceded ("The employer conceded this was true").

Defect 3 — an internally inconsistent excuse

73. The decision excuses the Ethical Standards Unit on the footing that "due to your lack of communication of this information to the Unit, **they could not have known** this was the reason for your lack of participation".
74. That reasoning is then extended to the July meetings by the word "Likewise". **But the decision's own narrative records that the meeting was rescheduled "since you were away on that day"**. On the face of the decision, the position in July was known.

Defect 4 — "no other actions available" is asserted, not reasoned

75. Alternatives plainly existed and none is considered: deferring the meeting until the appellant was fit; communicating the outcome in writing; seeking the treating practitioner's view on whether a meeting was appropriate; offering a support person. *Bowers v WorkCover Queensland* [2002] QIC 18, on which the decision relies, holds that management action "need not be perfect or above criticism" and "permits some failings, deficiencies and flaws". That is a proposition about whether action was reasonable. It is not a warrant for omitting to ask whether any alternative existed.

Defect 5 — the Delaney threshold recited but not tested

76. The decision correctly states the principle in *Delaney v Q-COMP Review Unit* [2005] QIC 11 that actions joined by **subject matter, time and personality** may be evaluated globally. It then aggregates the three substantiated factors without asking whether they are so joined.

Factor	Subject matter	Period	Person
2	Complaint handling	May 2024 (and July)	ESU / Ms Reese
3	Pay	February–May 2024	Ms Taylor / payroll
4	Rostering and fatigue	17–18 March 2024	Ms Taylor

77. The three factors differ in subject matter, differ in period, and differ at least in part in the persons involved. Whether the *Delaney* precondition was satisfied is a live question that the decision does not address.

Defect 6 — factor 4 treated as an incident rather than a sequence

78. The decision finds that the employer "only failed to maintain a 10-hour break... on one occasion" and substantiates the factor "only to the extent of the one occasion". The correspondence of 8 April, the escalation of 9 April, the follow-up of 24 April and the refusal of 1 May 2024 are recited elsewhere in the decision and are not carried into the factor 4 analysis. A 44-day sequence involving several decision-makers was assessed as a single shift.

Defect 7 — the instrument question expressly not decided

79. The decision states that there was "uncertainty... regarding whether the 8-hour agreement continued to apply" but that "it is not necessary for me to consider whether the employer's stance on its application was reasonable". The question whether it was reasonable to apply a casual-era agreement to a later full-time roster is the manner question, and it was not answered.

Defect 8 — an element of the complaint that does not appear

80. A full-text search of the 28 pages returns **no occurrence of "patient", "safety" or "at risk"**. The only occurrence of "clinical" relates to the treating doctor's clinical findings.
81. The appellant's email to WorkCover of 30 August 2024 is recorded in the decision as follows: "You emailed WorkCover on 30 August 2024 and in referring to the email of Ms Taylor dated 19 April 2024 regarding the new process for data entry, **commented she failed to consult regarding this new process.**"
82. The subject line of that email was **"Failure to consult putting patients at risk"**. The clinical-risk element does not appear in the decision.
83. The department concerned is a hospital switchboard, responsible for emergency call routing and after-hours on-call contact. A complaint touching clinical risk, closed within a fortnight without investigation, is a materially different matter from a workplace grievance closed within a fortnight. **The decision does not engage with that difference because the element does not appear in it.**
84. No inference is drawn as to why. The omission is recorded as an omission.

Defect 9 — a material fact that was not before the reviewing officer

85. The decision nowhere asks whether a fatigue risk management framework existed, whether any risk assessment was undertaken, or whether the employer's own policy control was applied. That is because the employer's concessions on those matters did not exist until 5 June 2026. This is not a criticism of the reviewing officer. It establishes that the decision was made on a materially incomplete record.

Part I — The authorities used, and the authority not used

86. The decision cites five authorities across four footnotes. They are:

Authority	Year	Function in the decision
<i>Bowers v WorkCover Queensland</i> [2002] QIC 18	2002	Quoted verbatim: management action "need not be perfect or above criticism" and "permits some failings, deficiencies and flaws"
<i>Delaney v Q-COMP Review Unit</i> [2005] QIC 11; 178 QGIG 197	2005	Global evaluation of a course of management action
<i>Prizeman v Q-COMP</i> [2005] QIC 53; (2005) 180 QGIG 481	2005	Management action
<i>Rowe</i> [2009] QIRC 9; 190 QGIG 93	2009	Management action
[2000] QIC 67	2000	Cited at footnote 2

87. **No authority later than 2009 is cited.** The decision was made in October 2024.

88. *Mahaffey v Workers' Compensation Regulator* [2016] ICQ 10 is the leading appellate authority on s 32(5)(a). It post-dates every authority relied on by at least seven years. It is binding on the Commission. **It is not cited, not distinguished, and not mentioned.**

89. *Read v Workers' Compensation Regulator* [2017] QIRC 72 and *Allwood v Workers' Compensation Regulator* [2017] QIRC 88 are likewise absent.

90. The four authorities relied on are, in combination, the standard line applied by respondents in s 32(5)(a) disputes. *Bowers* is the principal authority for tolerating deficiencies in management action; *Delaney* is the principal authority for evaluating a course of conduct globally, and therefore for absorbing an unreasonable component into a reasonable whole.

91. The observation in paragraph 90 is made about the reasons, not about any person. It is a submission available to be made in open court and it requires no material beyond the decision itself.

How the citations entered the document

92. The served PDF is a tagged document. Its structure tree carries language attributes at element level. Of 415 language-tagged elements, **412 are tagged EN-AU and exactly three are tagged EN-US.**

93. All three EN-US elements are **case citations**: the citation of *Prizeman* in footnote 3; the citation of *Bowers* in footnote 4; and a span within the *Rowe* footnote on page 6.

94. In Microsoft Word, language is a run-level attribute and text pasted from another document ordinarily retains the language of its source. The tagging is therefore consistent with the citations having been **carried into the document from an existing block of text** rather than typed or researched for this matter.

95. That is an observation about method. It supplies a mechanism for the absence of any authority later than 2009 that does not require anyone to have made a choice: a standing precedent, reused.

Part J — The production of the document

96. What follows is taken from the served file. It is reproducible by any party holding the same file. The file examined is 258,752 bytes, SHA-256 d0b2a514524690557eac52ace21d5864b7004d90ab5d83cd0fd474f25f9e5e9a.

Timing of production

97. The PDF was created on **24 October 2024 at 10:16:52 (+10:00)** and finalised at **10:17:01** — an elapsed time of nine seconds. The producing application was **Acrobat PDFMaker 24 for Word** with **Adobe PDF Library 24.3.212**.
98. The file contains two cross-reference sections, which correspond to linearisation and not to an incremental update. **The file was written once and has not been edited since.**
99. The source was a Microsoft Word document. This is established independently of the producing-application string; the structure tree contains the standard Microsoft Word role map (15 entries, including Footnote to Note and TextBox to Art). A producing-application string can be edited; a Word role map is generated by the conversion. **It follows that the PDF was not created by scanning, printing or re-saving an existing PDF.**

Document properties

100. The document information dictionary contains 25 entries. The identity and document-management entries are reproduced verbatim:

```
/Author          HopgoodGanim Lawyers
/Company         HopgoodGanim Lawyers
/Creator         Acrobat PDFMaker 24 for Word
/Producer        Adobe PDF Library 24.3.212
/CreationDate    D:20241024101652+10'00'
/ModDate         D:20241024101701+10'00'
/SourceModified  (empty)
/Title /Subject /Keywords /Comments  (all empty)

/hgDMSMatter     2440758
/hgDMSDocumentId 29218845v1
/hgDMSAuthorName hendry8286
/hgDMSAddressee  Worker applicant - Mr Cory Shepherd
/hgDMSDescription Reasons for decision - WCR reject
/hgMSDocType     DOCUMENT
/hgDMSDate       09.10.2024
/hgSaveDescription Reasons for decision - WCR reject - Worker applicant -
                  Mr Cory Shepherd - 09.10.2024

/hgDMSMatter_Original <mcDMSMatter>
/hgDMSDate_Original  <mcDMSDate>
                  (and equivalents for Addressee, AuthorName, Description, DocType)
```

101. The same values appear a second time in the document's XMP metadata packet under the pdfx: namespace. That duplication is the ordinary behaviour of the converting application when the source Word document carries custom document properties. **The values were therefore properties of the Word document, not entries added to the PDF afterwards.**
102. The entries ending in _Original contain unresolved Word field placeholders. Their presence alongside resolved values is characteristic of a document-management add-in that writes both the resolved value and the token it resolved from. **Two consequences follow: the values were not typed by hand, and they are not the residue of an unrelated template, because the resolved values are specific to this matter and this worker.**

The comparison that gives the properties their meaning

103. Standing alone, an identity field proves little. Its significance here comes from comparison with documents produced by the Regulator itself in this appeal.

Document	/Author	/Company	Producer
Regulator's Statement of Facts and Contentions, 22 July 2025	QIRC	Workers' Compensation Regulator	Adobe PDF Library 17.11.238
Same, as served via the appellant's then solicitors, 22 July 2025	QIRC	Workers' Compensation Regulator	Adobe PDF Library 17.11.238
Regulator's Statement of Facts and Contentions, 13 May 2026	QIRC	Workers' Compensation Regulator	Adobe PDF Library 26.1.25
Review Decision 69983, 24 October 2024	HopgoodGanim Lawyers	HopgoodGanim Lawyers	Adobe PDF Library 24.3.212

104. Across two years and two versions of the converting software, the Regulator's own documents in this appeal record the Regulator as the authoring organisation. **The review decision records a different organisation, in both identity fields.**
105. This is not the absence of a value. It is a different value, in a document type where the Regulator's own value is demonstrably present.

The face of the document

106. Three images are embedded. Page 1 carries a 130 × 188 pixel PNG with an alpha channel: the Queensland Government coat of arms above the words "Queensland Government" and "Office of Industrial Relations". Pages 2 to 28 carry an identical 1627 × 134 pixel PNG rule in the Queensland Government maroon. Page 28 carries a 443 × 276 pixel grayscale JPEG of a handwritten signature.
107. The crest and rule are alpha-channel template assets, not scans or reconstructions. **The Word document was built on the Office of Industrial Relations' own letterhead template.**
108. The signature is an image inserted into the Word document before conversion; the surrounding page is vector text. The document was therefore signed electronically by inserting a signature graphic and was never printed and rescanned. There is no cryptographic digital signature over the document.

Integrity

109. Every test for alteration returns clean.

Test	Result
Text rendering mode operator (Tr)	Does not appear anywhere in 28 pages. All text is visible fill. No invisible text; no OCR layer
Incremental updates	None. Two cross-reference sections = linearisation
Optional content groups / layers	None
JavaScript, form fields, embedded files	None
Orphaned objects	18 of 672, every one structural (object streams, cross-reference streams, linearisation dictionary and hint stream). No recoverable deleted content
Page geometry	All 28 pages identical, 595.32 × 841.92 pt (exact A4), rotation 0. No substituted page
Fonts	Four embedded subsets: ArialMT, Arial-BoldMT, Arial-ItalicMT, Wingdings-Regular

110. **There is no evidence of alteration of any kind, and none is suggested.** The document is what it appears to be.

One artefact and its limits

111. Page 27 carries two link annotations, both pointing to a single email-gateway URL-protection address wrapping a `worksafe.qld.gov.au` destination. Such an address is generated when a link passes through a protected email system. The text containing that link was therefore pasted from an email rather than inserted as a fresh hyperlink, which is consistent with the closing section being reused boilerplate.
112. The gateway concerned **cannot be attributed**. Published mail-exchange records show that both the Office of Industrial Relations and the firm named in the document properties use the same email-security provider, on the same Australian inbound cluster. The artefact does, however, exclude one possibility: WorkCover Queensland uses a different provider entirely, so the pasted text did not originate in a WorkCover mailbox.

Part K — Who prepared the document: what is and is not established

113. The following propositions are established on the material examined.

#	Established
1	The PDF was generated from a Microsoft Word document on 24 October 2024 at 10:16:52, by Acrobat PDFMaker 24 for Word.
2	That Word document carried the populated document-management profile of a private law firm, specific to this matter and this worker: matter 2440758, document 29218845v1 (version one), addressee "Worker applicant - Mr Cory Shepherd", description "Reasons for decision - WCR reject", record date 09.10.2024.
3	Those values were written by a document-management add-in running on the workstation that saved the file, not typed and not inherited from an unrelated template.
4	Both identity fields name that firm, where the Regulator's own documents in this appeal name the Regulator.
5	The document was built on the Office of Industrial Relations' own letterhead template.
6	The firm named is one of thirteen firms appointed to WorkCover Queensland's Legal Services Panel in July 2023, and is ranked by Doyle's Guide as a leading Workers' Compensation and WorkCover firm, defendant side, in Queensland for 2018 to 2025.
7	The same firm is separately a member of the Queensland Whole-of-Government Legal Services Panel, whose fourteen categories include "workplace and industrial" and "public and administrative law", and whose term (1 June 2020 to 31 May 2026) covers October 2024. Queensland Government departments are eligible customers of that panel.

114. The following are **not** established, and no attempt is made to establish them.

#	Not established
1	Which workstation performed the conversion on 24 October 2024. Custom document properties travel inside a Word file, so the properties would survive the file being transmitted to and converted by another organisation.
2	By whom the firm was engaged, if it was engaged.
3	For what purpose, and on whose instructions.
4	Who paid.
5	Who decided. A document-management profile records that a file passed through a system. It does not record who applied their mind to the decision.
6	Whether the record date of 09.10.2024 reflects the date this document entered that system, the date the underlying file was opened, or a default. It precedes the decision of 22 October 2024 by thirteen days, and the file cannot resolve which.

115. Several innocent explanations are available and are recorded fairly.

116. **Explanation A — engagement by the Regulator under the whole-of-government panel.** Lawful, orthodox, procurement-approved, and consistent with the letterhead template having been supplied. Decision-makers across government commonly have reasons prepared with assistance, and s 326(4) is not offended provided the decision-maker applies her own mind.

117. **Explanation B — an earlier Regulator review decision was used as a precedent.** This is the most economical explanation available, because it accounts for the letterhead, the pre-2009 authorities, the pasted citations and the reused closing block simultaneously. It implies prior work of this kind.

118. **Explanation C — the document was transmitted to and returned from an external adviser.** Consistent with the single document version and with the two-day interval between the decision of 22 October and the reasons of 24 October. Less consistent with the record date of 9 October and with both identity fields naming the firm.
119. **Explanation D — a stale template. Excluded.** The values are specific to this matter and this worker.
120. Two matters point away from the most adverse construction and are recorded because they should be.
121. **First, the letterhead.** A firm retained by the insurer would not hold the Regulator's Word letterhead template. Its presence indicates a relationship with the Regulator, not with the insurer.
122. **Second, and more substantially, the document contains the concessions most damaging to the respondent's present case.** The reasons record that employment was a significant contributing factor, that the treating doctor attributed the injury solely to work events, and that there was no pre-existing condition. The Regulator's Statement of Facts and Contentions in this appeal denies causation and pleads a pre-existing condition. A practitioner experienced in defending these claims would be aware that rejecting under s 32(5)(a) while expressly conceding s 32(1) surrenders the causation gate on appeal. **That is not a concession an insurance litigator would make.**
123. Taken with Part I, the more probable reading is that the reasoning applies a respondent-side precedent *without a litigator's attention to the appeal that would follow* — that is, assembly rather than advocacy. On that reading the directional consistency of the errors is attributable to the instrument used rather than to any person's intention.

Part L — The independence analysis

124. The material is now weighed against the framework in Parts B and C.

#	Provision or matter	Effect	Assessment
1	s 326(4) — duty to act independently when making a decision	Supports scrutiny. A genuine statutory duty, engaged by a s 545 decision	Limited in the same sentence to the making of the decision. Nothing examined can reach the decision itself
2	ss 543 and 544 — the participation asymmetry	The strongest statutory framing available. The worker has a right of appearance and representation; the insurer has no participatory role at all	If an insurer-side participant materially contributed to producing the decision, the insurer obtained a participation the Act withholds. Requires a fact not established
3	s 539 — object of the review part	Against. "Non-adversarial" and "prompt". The word "independent" does not appear	Significant
4	s 490 compared with s 539	Against. Parliament used "independent" for medical assessment tribunals and not for reviews	A deliberate contrast
5	s 538(2) compared with Part 2	Against. Parliament prescribed who must conduct the insurer's internal review and prescribed nothing for the Regulator's	Deliberate silence
6	s 326(1)–(3)	Against. The Regulator is a public service office, not an independent authority, and may hold another office concurrently	The premise of institutional independence is not made out
7	s 329 and the signature	Against. Signed by a public service employee; delegation proper on its face	—
8	s 545(4) — hard deadline	Against. No unilateral power to extend; decided on the last available day	Legitimises production assistance
9	Apprehended bias (<i>Ebner</i> ; <i>Hot Holdings</i>)	The correct legal home for the concern. Requires no actual partiality	<i>Hot Holdings</i> leaves open when an interested participant plays a significant role; on its own facts the personal decision of the decision-maker was decisive
10	ss 549(1), 558(1)(c), 558(2)	Decisive as to what should be done. The scheme's own cure is the appeal, with the same substitution power, before an independent tribunal	Already engaged

125. Two conclusions follow, and they point in different directions.

126. As to the statute: the independence a Chapter 13 review offers is narrower than the words used to describe it. It is a duty on the decision-maker to decide independently, and a structural separation of the reviewing body from the insurer. It is not an institutional independence, it is not stated as an object of the review part, and it carries no prescription about who may prepare a review decision.

127. As to this decision: the process it describes and the process the file records are not the same process. The decision presents itself as "an independent administrative process" conducted by the decision-maker on the papers. The file records a document built on the Regulator's letterhead but produced in the environment of a private firm that is a member of the insurer's own legal services panel, on a precedent containing no authority later than 2009 and omitting the leading authority, and finalised on the last day the statute allowed.

128. Those two things are capable of coexisting lawfully. Whether they did is not a question the file can answer. It is a question the Regulator can answer in a sentence.

Part M — The questions arising

129. The following questions are the whole of what this review asserts. They are framed as questions because, on the material available, that is the highest form the points can properly take.
1. **Was any external legal service provider engaged in connection with review 69983?** If so, by which entity, and under which panel or procurement arrangement?
 2. If so, **was a conflict declaration sought and considered**, having regard to the provider's membership of WorkCover Queensland's Legal Services Panel?
 3. **Were the reasons for decision in review 69983 prepared, in whole or in part, by a person other than the reviewing officer**, and if so, in what capacity?
 4. Was any **draft of the review decision provided to WorkCover Queensland, to the employer, or to any legal representative of either**, before the decision issued on 24 October 2024?
 5. Was the appellant **offered the right of appearance and representation conferred by s 543**, and if so, when and in what terms?
 6. Was any **extension of the s 545(1) period** sought or considered?
 7. What is the **Regulator's practice** as to the use of external legal service providers in the preparation of review decisions under Chapter 13 Part 2, and what conflict-management arrangements apply to it?
130. Questions 1, 2, 3, 5, 6 and 7 concern the Regulator's own administrative record. The fact and identity of an engagement, and the existence of a conflict process, are not privileged; the content of any advice would be. Each is answerable without waiver.
131. Question 4 concerns records held by WorkCover Queensland and would appear, if it occurred, on that insurer's claim file and communications report for the period 13 September to 31 October 2024.

Part N — What this document does not conclude

132. It does not conclude that the reviewing officer failed to bring an independent mind to bear. Nothing examined is capable of establishing that.

133. It does not conclude that any firm acted for WorkCover Queensland in connection with this claim. Panel membership is not a retainer.
134. It does not conclude that any conflict of duty arose. That would require an engagement on this matter, on behalf of a party with an adverse interest, and no such engagement is established.
135. It does not allege dishonesty, improper purpose, corruption or any criminal conduct, and the appellant expressly disavows any such suggestion. Every offence capable of touching the matters described would require dishonesty or a corrupt benefit as an element, and nothing examined discloses either.
136. It does not seek any relief. The appellant's remedy is the appeal already on foot, in which the Commission may set aside the decision and substitute another under s 558(1)(c). The appellant continues to rely on the findings the review decision made in his favour.

Part O — Method, sources and verification

137. **Statutory sources.** *Workers' Compensation and Rehabilitation Act 2003* (Qld), authorised consolidation current 1 January 2025, ss 32, 326, 327, 329, 490, 538, 539, 543, 544, 545, 549, 550, 558.
138. **The decision.** Reasons for decision, review 69983, 24 October 2024, 28 pages. Quotations taken from the text layer of the served PDF and checked against the rendered page.
139. **Comparative documents.** The Regulator's Statements of Facts and Contentions of 22 July 2025 and 13 May 2026, as served in this appeal.
140. **Correspondence.** The appellant's complete email chain with WorkCover Queensland, 4 July to 10 October 2024, exported from his own mailbox. Header times are recorded in UTC and have been converted to Australian Eastern Standard Time by the addition of ten hours; the conversion is verified against quoted send times within the messages themselves.
141. **Technical method.** Metadata extracted with exiftool 12.76. Object-level examination, structure tree traversal, content-stream operator analysis and image extraction performed with pikepdf 10.10.0 and qpdf. Font analysis with pdffonts. Text extraction with pdftotext. Cross-reference and revision analysis by direct byte inspection. Mail-exchange records obtained by public DNS query. All results are reproducible by any party holding the same files.
142. **Matters requiring verification before any part of this review is relied upon in the appeal.**
 1. The period and capacity certified by the work capacity certificate of Dr Hawes dated 1 July 2024, which determines the strength of the point at paragraphs 67 to 72.
 2. The subject line and body of the appellant's email of 30 August 2024, from the source document rather than the export, which determines the point at paragraphs 80 to 84.
 3. Whether the reasoning on factor 3 also relies on conduct post-dating 18 June 2024.
 4. The undated email of Ms Reese referred to at page 12 of the decision, and the discrepancy between the employer's reference to "several attempts" and the finding of "twice".

content is the seven questions at Part M.